MUTARE BOARD AND PAPER MILLS LIMITED
versus
ABIGAIL NYAROTA
and
THE PROVINCIAL MINING DIRECTOR, MANICALAND N.O

HIGH COURT OF ZIMBABWE
MUZENDA J
MUTARE,3 March 2026

REASONS FOR JUDGMENT

MUZENDA J:

1. ON 17 January 2026 I granted the following order in favour of the applicant:

"IT IS ORDERED THAT:
1. The urgent chamber Application has merit and it is hereby granted with costs.

2. The First Respondent is ordered to restore vacant possession of Nyangani Estate to the Applicant forthwith."

The first respondent noted an appeal to the Supreme Court under SC 146/26 on 12 February 2026. That appeal was withdrawn and a fresh appeal was filed on 17 February 2026 under SC 163/26. This development caused the delay in providing reasons for the order I granted. I was made to believe that the appeal had been withdrawn.

2. Background facts

2.1. The background facts of this matter are well captured by the applicant in its founding affidavit.

2.2. In 2024 applicant approached this court seeking a declarator under HCMTC 132/24, applicant sought the cancellation of the registration certificate of a mining claim No. G5207 in the name of the current first respondent and on 15 July 2024 I granted the application.

2.3.The first respondent appealed to the Supreme Court and on 30 June 2025 under SC 473/24 first respondent's appeal was dismissed with costs.

2.4. On 22 January 2026, applicant got a copy of a letter from the second respondent speaking of a reinstatement of the Registratoion Certificate of Alumina 6, registered in first respondent's favour. Applicant resolved to approach this court on an urgent basis for spoliation. First respondent upon receiving the reinstatement letter proceeded to take occupation of the mining claim without the permission of the applicant. On 24 January 2026 first respondent informed the applicant that she had come with her staff to resume mining operations in an area which had title. Applicant's security personnel tried to resist the re-occupation but were overpowered and first respondent without a court order re-occupied the mining claim.

3. On the date of hearing of the urgent matter first respondent contented that the letter of reinstatement of her registration certificate authorized her to resume operation at the mine. The applicant on the other hand contended that the alleged letter relied upon by the first respondent was patently unlawful and the second respondent has no lawful authority or jurisdiction to issue a directive that directly and effectively circumvents court orders granted in favour of the applicant/. The alleged reinstatement letter does not set aside the order by both High and Supreme Courts, it was submitted.

4. Disposition.

My order which was subsequently appealed against by first respondent specifically made a peremptory condition to the effect that first respondent had to procure an Environment Impact Assessment certificate before lodging an application for the re-registration of the mining claim. This court did not order that the registration would be restored administratively by the second respondent. The letter from second respondent speaks of another form of communication from the Secretary of Mines and Mining Development Ministry which was never filed by the first respondent. It remains unclear how such a communique was reached at and does not form part of the record.

5. At the time the letter of 22 January 2026 was copied to the applicant there was virtually no registration capable of reinstatement since this court had nullified registration number G5207. By operation of law that certificate "died" and could not be resuscitated from the graveyard, first respondent was legally obliged to relaunch the process afresh complying with all provisions of the legislature pertaining to acquiring mining rights. First respondent

actually bordered on contempt of court. First respondent behaved as if there was never a court order binding her.

6. The first respondent relying on 22 January 2026 letter simply strolled into applicant's private property and boldly announced that she had come to resume operations at the claim site. She had no court order. She had no certificate of registration or even a letter from second respondent stating that a new registration certificate will be processed. She basically took the law into her hands and re-occupied applicant's property. Applicant has met all the expected grounds for a *mandamus* and it ought to succeed coupled with an order of costs.